

23SMCV03566 23SMCV03566

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-06-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C06%2F25%2F2026

Source SHA-256: 28c024df3f8b843c100c889b1bf70bb1038247f93cd26058069ce4c52854f2dd

Case Number: 23SMCV03566 Hearing Date: June 25, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

June

25, 2026

CASE NUMBER

23SMCV03566

MOTIONS

(1)

Motion for Attorney Fees

(2)

Motion to Tax Costs

MOVING PARTIES

(1)

Plaintiff Francisco Abel Alfaro Delgado

(2) Defendant
General Motors LLC

OPPOSING PARTIES

(1)
Defendant General Motors LLC

(2)
Plaintiff Francisco Abel Alfaro Delgado

BACKGROUND

This case arises from allegations that Defendants failed to repair or replace a 2022 Chevrolet Corvette sold to Plaintiff in violation of the Song-Beverly Act.

On August 1, 2023, Plaintiff Francisco Abel Alfaro Delgado ("Plaintiff") brought suit against Defendants General Motors LLC ("GM") and CCC Auto, LLC d/b/a Culver City Chevrolet ("CCC") alleging two causes of action for (1) breach of implied warranty of merchantability under the Song-Beverly Warranty Act and (2) breach of express warranty under the Song-Beverly Warranty Act.

On May 8, 2025, Plaintiff filed a Notice of Settlement of Entire Case. The Court dismissed the case on August 18, 2025 without prejudice, retaining jurisdiction pursuant to Code of Civil Procedure section 664.6.

Plaintiff now moves to recover attorneys' fees and costs incurred in connection with this case. GM opposes the motion and Plaintiff replies.

GM separately moves to tax Plaintiff's requested costs. Plaintiff opposes GM's motion and GM replies.

ANALYSIS

I.
ATTORNEYS'

FEES

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).)

Civil Code section 1794,

subdivision (d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiff

seeks attorneys' fees and costs in the amount of \$23,887.69, representing attorneys' fees in the amount of \$22,732.00 and costs in the amount of \$1,155.69, pursuant to Civil Code section 1794, subdivision (d).

In

opposition, GM argues that Plaintiff's request for attorneys' fees should be denied outright as untimely, or in the alternative, should be reduced.

A.

Timeliness

GM argues Plaintiff's request

for attorneys' fees and costs is untimely because they were filed 329 days after the Court dismissed the case and 374 days after settlement. In support, GM cites to *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644 (hereafter *Hatlevig*).[1]

In *Hatlevig*, the Fourth

District Court of Appeal affirmed the trial court's ruling in denying the plaintiff's motion for attorneys' fees as untimely. (*Hatlevig*, supra, 118 Cal.App.5th at p. 650.) There, the plaintiff sued GM for defects in a vehicle. The plaintiff's counsel then notified the trial court of the parties' settlement. Accordingly, the trial court vacated all pending matters and ordered a dismissal filed within 45 days. Forty-five days thereafter, the clerk

generated a notice of dismissal by the trial court, indicating the case would be dismissed without prejudice on August 15, 2023, unless a judgment or dismissal was filed prior to that date or a party appeared ex parte to show good cause why the case should not be dismissed. Neither event occurred by August 15, 2023. (Hatlevig, supra, 118 Cal.App.5th at pp. 646-647.)

Subsequently, on August 31, 2023, Plaintiff filed a motion for attorneys' fees, but did not serve the motion on GM until April 4, 2024. The hearing was scheduled for April 26, 2024. (Hatlevig, supra, 118 Cal.App.5th at p. 647.)

The trial court denied the motion as untimely on the grounds that, even giving the plaintiff the benefit of the full 180 days^[2] after the August 15, 2023 date of dismissal, plaintiff did not timely serve GM with notice of the motion. In so holding, the court rejected the argument that because there was no entry of judgment or dismissal, the 180-day deadline was never triggered, on the grounds that the plaintiff should not be able to extend the deadline to file a fee motion by indefinitely failing to comply with the court's order to file a dismissal within 45 days or show cause why a dismissal should not be entered. (Hatlevig, supra, 118 Cal.App.5th at p. 647.)

Similarly here, the Court dismissed Plaintiff's claims without prejudice on August 18, 2025, yet Plaintiff did not file the instant motion for attorneys' fees or memorandum of costs until 273 days later, on May 18, 2026.

In opposition, Plaintiff contends the motion for attorneys' fees and costs is timely because the settlement was conditional. Thus, even though California Rules of Court, rule 3.1385(b) generally requires dismissal within 45 days of filing the notice of settlement, under subdivision (c)(1), an exception arises for conditional settlements, the notice of settlement must specify the date (beyond 45 days) by which the dismissal is to be filed.

Plaintiff points out the settlement offer provided that Plaintiff would file a dismissal within five business

days after receiving all payments from GM.

But the Notice of Settlement itself indicates Plaintiff will request a voluntary dismissal no later than August 5, 2025, and dismissal was actually entered on August 18, 2025.

Further, even if the Court

were to entertain Plaintiff's argument that the settlement offer, and not the filed Notice of Settlement or actual dismissal date controls, and consider Plaintiff's reply evidence to do so,[3]

the settlement offer provides that within 30 days of accepting the offer, Plaintiff will provide GM's counsel with loan payoff information for the vehicle. Within 60 days thereafter,

Plaintiff will transfer possession of the vehicle to GM. Within 10 business days thereafter, GM will overnight the loan payoff check to the lender and a check to Plaintiff's counsel for the rest of the settlement amount, less the loan payoff balance. (Ex. A to Reply Nita Decl.)

Plaintiff accepted the offer

on May 7, 2025. Ninety days thereafter

is August 5, 2025. Ten business days later is August 19, 2025, and the payoff

check should have arrived no later than Wednesday, August 20, 2025. Thus, Plaintiff's dismissal should have occurred no later than Wednesday, August 27, 2025. As such, the fees and costs requests filed 264 days later are still untimely.

Plaintiff also argues that good

cause exists to extend the time within which Plaintiff may timely file the motions for fees and costs because (1) the Court kept jurisdiction under Code of Civil Procedure section 664.6; (2) the settlement offer indicated judgment would not be entered until the matter is dismissed with prejudice, which has not yet occurred because the attorneys' fees, costs, and expenses have not yet been resolved and paid; and (3) there is no prejudice to GM, who knew all along that the fee-shifting provisions of Song-Beverly Act would apply.

The Court does not find

Plaintiff has presented good cause to extend the deadline to request attorneys' fees and costs. As discussed above, even retaining jurisdiction under Code of Civil Procedure section 664.6, dismissal was to be requested pursuant to the parties' agreement no later than Wednesday, August 27, 2025, and was in fact entered on August 18, 2025.

Further, Plaintiff's second

argument is circular. Plaintiff argues that no dismissal with prejudice or judgment was yet entered because Plaintiff did not yet request attorneys' fees and costs. But Plaintiff may not indefinitely extend the time within which such motions must be brought by indefinitely delaying them.

Finally, while GM knew that the fee-shifting provisions of Song-Beverly would apply, it is not obligated to pay those fees and costs indefinitely until Plaintiff decides to finally file a motion.

II.

COSTS

Plaintiff seeks costs in the amount of \$1,155.69, representing filing and motion fees in the amount of \$495, jury fees in the amount of \$150, service of process fees in the amount of \$257.63, and electronic filing/service fees in the amount of \$253.06.

GM similarly argues that Plaintiff's memorandum of costs, which was filed the same day as Plaintiff's motion for attorneys' fees, is untimely and should be denied outright.

California Rules of Court, rule 3.1700(a)(1) provides, "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first."

For the same reasons as discussed above, the Court finds Plaintiff's request for costs pursuant to the memorandum of costs is belated.

CONCLUSION AND ORDER

Finding

Plaintiff's motion for attorneys' fees and memorandum of costs are untimely, the Court denies Plaintiff's motion and grants Defendant's motion to strike Plaintiff's costs.

Defendant

shall provide notice of the Court's rulings and file the notice with a proof of service forthwith.

DATED: June 25, 2026 ____/s/____

Michael

E. Whitaker

Judge

of the Superior Court

[1] Plaintiff cited to the case as 2026 WL 445030, which now bears the official citation 118 Cal.App.5th 644.

[2] California Rules of Court, rule 3.1702(b) requires that a motion for attorneys' fees be filed within the time limits to file an appeal under Rules 8.104 and 8.108. Rule 8.104 requires that an appeal be filed within 60 days of service of a notice of entry of judgment or within 180 days of judgment, whichever is earlier.

[3] The Court does not generally consider reply evidence, as it deprives the opposing party of notice and a fair opportunity to respond, in violation of its Due Process rights.

(See *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 ["due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail"]; see also *Wall Street Network Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171.)